

SANTELICES v TURNER, et al

24CV47361

DEFENDANT TURNER and FOUNTAINS' DISCOVERY MOTIONS

This civil action stems from a dispute over the destruction and burning of several trees on real property owned by Plaintiff Cynthia Santelices ("Plaintiff") by Defendants Dolores Turner ("Turner"), Kristeen B. Fountain ("Fountain"), Josh Noble ("Noble") and Noble Tree Service (collectively "Defendants".) Turner and Fountain filed a Cross-Complaint against Plaintiff and Noble and Noble Tree Service.

Before the Court are Defendants Turner and Fountain's four separate motions to compel discovery which ask the Court to: 1) deem admitted the truth of facts in the Request for Admissions ("RFA"), 2) compel answers to Requests for Production of Documents ("RPDs"), 3) compel responses to form interrogatories ("Form Interrogatories") and) compel responses to special interrogatories ("Special Interrogatories") (collectively "Discovery"), and 5) impose sanctions on Plaintiff.

The Court initially heard this matter on November 1, 2024, and continued the matter for three weeks after giving Plaintiff directions as to how discovery needed to be answered in an effort to balance equities, specifically ordering that:

Plaintiff is directed to submit verified responses to Defendant's RFAs, RPDs, Special Interrogatories and Form Interrogatories by 5:00 P.M. on November 8, 2024. Within one week of receipt of the responses, Defendants are to contact the Court to drop the hearing if they are satisfied with Plaintiff's final responses or, alternatively, to file a supplemental declaration attaching the responses and detailing the claimed continued shortcomings. The Court declines sanctions at this stage, noting Plaintiff has provided some portion of responses, and this matter could have been resolved informally without court involvement; if the matter remains on calendar for November 22, 2024, the Court will revisit the issue of sanctions.

Based on Defendants' declaration filed on November 15, 2024, there are continued claimed shortcomings in plaintiff's discovery responses.

I. Factual and Procedural Background

A. Background Facts

Plaintiff is the owner of a ten-acre parcel of real property in Calaveras County with Assessor's Parcel Number (APN) #004-006-010-000 ("Property"). (FAC ¶ 6.); the

neighboring property is located at 200 Miwuk Court in West Point and is co-owned by Turner and Fountain.

In October 2020, Defendants engaged in the destruction of a significant 48-inch diameter oak tree standing 40 feet tall which fell across what the Plaintiff then believed was the border of her property. (FAC ¶ 7.) In March 2022, Plaintiff observed that the entire neighboring property had been clear-cut and burned and that the fire had encroached beyond the then known boundary, onto her property. (FAC ¶ 8.) On June 29, 2022, Plaintiff confronted Noble about the fire damage which Noble refused to address or remedy. (FAC ¶ 9.) After hiring a surveyor, Plaintiff learned that the land which had been cut and burned was in fact hers. (FAC ¶ 10.) Plaintiff thereafter employed an arborist who assessed the damages to the trees alone at over \$194,000.00. (FAC ¶ 11.)

Plaintiff's FAC brings causes of action for 1) Timber Trespass (CA Civil Code § 3346); 2) Trespass (CA Civil Code § 733); 3) Negligence; 4) Nuisance (CA Civil Code § 3479); 5) Encroachment; and 6) Willfulness & Malice (CA Civil Code § 3294).

B. Discovery and Supplemental Responses

Defendant asserts that issues remain with Plaintiff's discovery responses. First, Defendant asserts that the Plaintiff's response to Form Interrogatory 12.1 is insufficient and contains objections which this Court explicitly disallowed. Form Interrogatory 12.1 states:

- Form Interrogatory 12.1 requires the responding party to: "State the name, ADDRESS, and telephone number of each individual: (a) who witnessed the INCIDENT or the events occurring immediately before or after the INCIDENT; (b) who made any statement at the scene of the INCIDENT; (c) who heard any statements made about the INCIDENT by any individual at the scene; and (d) who YOU OR ANYONE ACTING ON YOUR BEHALF claim has knowledge of the INCIDENT (except for expert witnesses covered by Code of Civil Procedure section 2034)."

Plaintiff's response to this interrogatory was:

THE ARBORIST WHO WROTE THE REPORT (NAME AND INFO IS AVAILABLE THERE).

JUDY MCGRAW (OBJECTION - OVERBROAD, RELEVANCE TO FURTHER DISCLOSURE)

(Declaration of Seth Nunley ("Nunley Decl.") ¶ 2, Ex. A.)

The Court agrees that this answer is insufficient as it does not provide the name, address or telephone number of either witness. Moreover, the Court's November 1, 2024, order required Plaintiff to submit complete, verified responses *without any objection*. Accordingly, Plaintiff's answer to Form Interrogatory 12.1 is nonresponsive and Defendant's motion is well-taken.

Defendant next takes issue with Plaintiff's response to Form Interrogatory 17.1. It is unclear what Defendant is referring to as there is no Form Interrogatory 17.1 on the Plaintiff's discovery response. Defendant does cite to Form Interrogatory 17.0, however, to which Plaintiff replied "NO." However, the Plaintiff did not set forth the question she was responding to and Defendant has not identified exactly what the discovery request was either. However, it appears to have been a request for all information upon which the Plaintiff's denial of the Requests for Admissions was based. **Plaintiff is ordered to provide a substantive supplemental response to Form Interrogatory 17.1, without any objections, within ten (10) days of this Ruling.**

Defendant's next issue is with Plaintiff's response to the Request for Production of Documents. Based on counsel's declaration and attachment, Plaintiff did provide significant amounts of document production, but such production was not done in compliance with Code Civil Procedure section 2031.280(a) [requiring any documents or category of documents to be identified "with the specific request to which the documents respond."]) (Nunley Decl. ¶ 10, Ex. B.) The Court agrees that while Plaintiff attempted to respond to the discovery requests, she failed to identify which documents pertained to which request. Accordingly, **Plaintiff is ordered to provide supplemental responses indicating which documents pertain to which request, again within ten (10) court days of this ruling.**

Finally, Defendant takes issue with Plaintiff's response to the Requests for Admission because, while she did respond, Plaintiff failed to sign the verification. (Nunley Decl. ¶ 14, Ex. C.) As such, the responses are not verified and are considered non-responsive. (*Appleton v. Superior Court* (1998), 206 Cal.App.3d 632, 636.) Plaintiff was already given a second chance to remedy the failures in these discovery responses, including being expressly ordered to include verifications of all responses. At this point, given the court's leniency and Plaintiff's continued failure to timely and adequately respond, the **Court grants Defendant's motion to have the truth of the matters therein deemed admitted.** (Code Civ. Proc. § 2033.280(b).)

The Court is required under the Discovery Act to impose sanctions upon Plaintiff because of her continued failures to comply with the rules of discovery, as well as this Court's order. Defendant seeks at a minimum, \$5,503.50. It is unclear how Defendant calculated this amount. In the original motions, Defendant sought a total of \$2700 in sanctions for bringing the four motions to compel (\$675 per motion) (See e.g., Nunley Decl. attached to Motion to Compel RPDs at ¶ 11.)

Mr. Nunley avers that he has spent three hours “reviewing plaintiff’s responses to the subject discovery, researching, writing, and otherwise attending to this declaration for a total of \$1,050.00.” (Nunley Decl. ¶ 17) ($\$1050/3 = \350 per hour). He further avers that his paralegal spent .75 hours for a cost of \$30.00 (*Id.*). Defendant also seeks \$240 in filing fees.

Based on the Court’s calculations, Defendant’s counsel has incurred \$3750.00 in fees related to these motions. Plaintiff substantially replied to the SROGs and accordingly the Court declines to award sanctions for those responses, making Defendant’s fees \$3,075 plus \$240 in filing fees. **Accordingly, the Court awards Defendant sanction in the amount of \$3315.00, to be paid by plaintiff within ten (10) court days of this Ruling.**

The Clerk shall provide notice of the Ruling forthwith. Defendant to submit a formal Order pursuant to CRC 3.1312 in compliance with this Ruling.